UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF TEXAS
SHERMAN DIVISION

EXAMPLE PLAINTIFF, LLC,
Plaintiff,
v.
EXAMPLE DEFENDANT, INC.
Defendant.

Civil Action No. 4:00-cv-00000

DEFENDANT EXAMPLE DEFENDANT, INC.'S MOTION TO DISMISS UNDER RULE 12(B)(6)

Defendant Example Defendant, Inc. moves to dismiss the Complaint under Federal Rule of Civil Procedure 12(b)(6) for failure to state a claim upon which relief can be granted. This motion is dispositive; the memorandum below is part of it.

I. STATEMENT OF THE ISSUE TO BE DECIDED

Whether the Complaint pleads facts that, taken as true, state a plausible claim for relief on any of its counts.

II. BACKGROUND

The Complaint alleges that Plaintiff provided services to Defendant under an agreement that Plaintiff describes only in general terms. It alleges that Defendant later stopped paying for those services and that Plaintiff suffered damages as a result. The Complaint does not attach the agreement, does not identify its date or its terms, and does not allege the amount owed.

Plaintiff pleads two counts: breach of contract and unjust enrichment. The unjust enrichment count repeats the contract allegations and adds a single sentence alleging that Defendant "received a benefit" without saying what the benefit was.

III. LEGAL STANDARD

To survive a motion to dismiss under Rule 12(b)(6), a complaint must contain enough facts to state a claim to relief that is plausible on its face. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). A claim is facially plausible when the pleaded facts allow the court to draw the reasonable inference that the defendant is liable for the misconduct alleged. *Id.* Labels, conclusions, and a formulaic recitation of the elements of a cause of action do not suffice. *Id.* The court accepts well-pleaded facts as true, but not legal conclusions couched as facts.

IV. ARGUMENT

A. Count I fails to plead the existence and terms of a contract

A breach of contract claim requires a valid contract, the plaintiff's performance or tender of performance, the defendant's breach, and resulting damages. The Complaint pleads none of those elements with the facts needed to make them plausible.

The Complaint does not identify the contract's date, parties, scope, price, or term. It does not say whether the agreement was written or oral. A court cannot infer from the phrase "under an agreement" that a specific promise exists, what that promise required, or which party failed to perform it.

Nor does the Complaint plead the amount of damages. It says Plaintiff "suffered damages" and stops. A damages allegation with no number and no basis for one does not give Defendant fair notice of the claim it must answer.

B. Count II fails because the unjust enrichment allegation is conclusory

An unjust enrichment claim requires that the defendant obtained a benefit from the plaintiff by fraud, duress, or the taking of an undue advantage. The Complaint's single sentence about a

"benefit" does not say what the benefit was, how Defendant obtained it, or why retaining it would be unjust. That sentence is a legal conclusion, and the court need not accept it.

Count II also repeats the contract allegations. A plaintiff may plead in the alternative, but the alternative must still be plausible. Where the Complaint says there was a contract, it does not plead facts that would support recovery in the absence of one, and it does not plead any facts about what Defendant received.

Plaintiff's conclusory allegations should be disregarded

The Complaint uses the words "wrongful," "willful," and "bad faith" without a single fact showing what Defendant did or knew. Those words add nothing to the plausibility analysis. Under *Iqbal*, the court disregards them and asks whether the remaining facts state a claim. They do not.

Dismissal should be with prejudice only if amendment would be futile

Defendant recognizes that the court ordinarily gives a plaintiff at least one chance to amend. If the court grants this motion, Defendant asks that the dismissal be without prejudice to a properly pleaded amended complaint, and that any amendment be filed within the period the court sets.

V. CONCLUSION

For these reasons, Defendant asks the court to:

a. dismiss Count I for failure to state a claim under Rule 12(b)(6);

b. dismiss Count II for failure to state a claim under Rule 12(b)(6);

c. grant leave to amend only in a form that pleads the contract, the benefit, and the damages with facts; and

d. grant any further relief the court finds just.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on October 14, 2026, the foregoing document was served on all counsel of record through the Court's CM/ECF system.